IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF CLACKAMAS

TYLER A. LOFALL, Plaintiff, v. COUNTY OF CLACKAMAS, DA REBECCA PORTLOCK, WEST LINN POLICE DEPARTMENT, CLACKAMAS COUNTY POLICE DEPARTMENT, WEST LINN POLICE OFFICER DANA GUNNERSON, WEST LINN POLICE OFFICER CAITLIN BLYTH, CLACKAMAS COUNTY JAIL, Defendants.	Case No. 22CV39627 **ORDER DENYING PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT AND RENEWED MOTION FOR SUMMARY JUDGMENT AND DEFENDANTS WEST LINN POLICE DEPARTMENT, DANA GUNNARSON AND CATLIN BLYTH'S CROSS-MOTION FOR SUMMARY JUDGMENT**

This matter came before the Honorable Leslie M. Roberts on June 28, 2023, on Plaintiff's Motion for Summary Judgment, Plaintiff's Renewed Motion for Summary Judgment and Defendants' West Linn Police Department, Dana Gunnarson and Catlin Blyth's ("West Linn Defendants") Cross-Motion for Summary Judgment.

The court, having considered the memorandum and authorities submitted by the parties, and the arguments of the parties, HEREBY ORDERS as follows:

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Plaintiff's Motion for Summary Judgment and Renewed Motion for Summary Judgment and West Linn Defendants' Cross-Motion for Summary Judgment are DENIED.

7/17/2023 5:24:14 PM

Circuit Court Judge Leslie Roberts

Submitted by:
William E. Stabler, OSB No. 124624
wstabler@cisoregon.org
LEWIS, NWEZE & STABLER
Of Attorneys for Defendants West Linn Police Department,
Dana Gunnarson and Catlin Blyth

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CERTIFICATE OF READINESS

I hereby certify that the foregoing proposed Order is ready for judicial signature based on the following:

1. ☐ Each party affected by the order or judgment has stipulated to the order or judgment, as shown by each opposing party's signature on the document being submitted.
2. ☐ Each opposing party affected by this order or judgment has approved the order or judgment, as shown by the signature on the document being submitted or by written confirmation of approval sent to me.
3. ☒ I have served a copy of this order or judgment on all parties entitled to service and:
   a. ☒ No objection has been served on me.
   b. ☐ I received objections that I could not resolve with the opposing party despite reasonable efforts to do so. I have filed a copy of the objections I received and indicated which objections remain unresolved.
   c. ☐ After conferring about objections [role and name of opposing party] agreed to independently file any remaining objections.
4. ☐ Service is not required pursuant to subsection (3) of this rule, or by statute, rule, or otherwise.
5. ☐ This is a proposed judgment that includes an award of punitive damages and notice has been served on the Director of the Crime Victims' Assistance Section as required by subsection (5) of this rule.

DATED this 14th day of July 2023.

LEWIS, NWEZE & STABLER

By: *s/William E. Stabler*
William E. Stabler, OSB No. 124624
Of Attorneys for West Linn Defendants

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Melanie Webb

From: Melanie Webb
Sent: Thursday, July 6, 2023 12:22 PM
To: Tyler Lofall
Cc: William Stabler; Raechelle Ottosen; Dave Lewis
Subject: Lofall v. West Linn Police Department, et a
Attachments: Order on MSJs.docx

Mr. Lofall,

Attached is an Order regarding Judge Roberts' ruling on the parties' summary judgment motions. Please let us know if you have any changes or if the Order meets with your approval. If we haven't heard from you by Jul 13 at 5 p.m. we will plan on filing the Order with the court and sending to Judge Roberts for her signature.

Melanie Webb | Legal Assistant
Lewis, Nweze & Stabler | 15875 Boones Ferry Rd #1469 | Lake Oswego, OR 97035
p 503-763-3862 | 800-922-2684 x3862 | f 503-763-3900
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CERTIFICATE OF SERVICE

I hereby certify that on the 6th day of July 2023, not less than seven days before submission to the Court, I served the foregoing **ORDER DENYING PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT AND RENEWED MOTION FOR SUMMARY JUDGMENT AND DEFENDANTS WEST LINN POLICE DEPARTMENT, DANA GUNNARSON AND CATLIN BLYTH'S CROSS-MOTION FOR SUMMARY JUDGMENT** on the following party by the method(s) indicated below:

Tyler Allen Lofall tyleralofall@gmail.com 6880 NW 271st Avenue Hillsboro, OR 97124 Plaintiff Pro Se	☒ First-class mail, postage prepaid ☐ Facsimile, pursuant to ORCP 9 F ☐ Hand Delivery ☐ Overnight courier, delivery prepaid ☐ E-mail, pursuant to ORCP 9 G ☒ E-mail copy, as courtesy only

Electronic Service, via Odyssey File & Serve, pursuant to UTCR 21.100:

Tyler Allen Lofall
tyleralofall@gmail.com
Plaintiff Pro Se

s/ *William E. Stabler*
William E. Stabler, OSB No. 124624
Of Attorneys for Defendants West Linn Police Department, Dana Gunnarson and Catlin Blyth

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